

(2) Any reference in this Act to Part II of the National Service Act, 1948, shall include a reference to paragraph (b) of section fifty-six of that Act and to section fifty-seven of that Act, which respectively provide for the application of certain provisions of the said Part II to Scotland and Northern Ireland.

9.—(1) His Majesty may by Order in Council direct that this Act shall extend to the Isle of Man, subject to such adaptations and modifications as may be specified in the Order. Power to extend to Isle of Man.

(2) Any Order in Council made under this section may be varied or revoked by a subsequent Order in Council.

10. This Act may be cited as the Reinstatement in Civil Short title. Employment Act, 1950.

Table of Statutes referred to in this Act.

Short Title	Session and Chapter
Armed Forces (Conditions of Service) Act, 1939	2 & 3 Geo. 6. c. 68.
Naval and Marine Forces (Temporary Release from Service) Act, 1940	4 & 5 Geo. 6. c. 4.
Naval Forces (Extension of Service) Act, 1944 ...	7 & 8 Geo. 6. c. 13.
Reinstatement in Civil Employment Act, 1944 ...	7 & 8 Geo. 6. c. 15.
National Service Act, 1948	11 & 12 Geo. 6. c. 64.

CHAPTER 11

Administration of Justice (Pensions) Act, 1950

ARRANGEMENT OF SECTIONS

PART I

LUMP SUMS AND WIDOWS' AND CHILDREN'S PENSIONS

Reduction of pension in return for lump sum

Section.

1. Reduction of pension in return for benefits under s. 2.
2. Lump sum on retirement or death.

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4. Widow's pension.
5. Children's pension: beneficiaries.
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9. Persons serving again after retirement.
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15. Savings for allocation of pension and for reduction of pension under National Insurance Act.
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21. President of the Transport Tribunal.
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SCHEDULES:

First Schedule—List of persons affected by Part I of this Act and their relevant service.

Second Schedule—Consequential amendments for reduction of personal pension.

Third Schedule—Financial.

Fourth Schedule—Scale of Pensions of Chairmen of London Quarter Sessions.

An Act to amend the law relating to the pensions and other benefits payable to and in respect of persons who administer justice, and for purposes connected therewith. [15th December 1950.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

LUMP SUMS AND WIDOWS' AND CHILDREN'S PENSIONS

Reduction of pension in return for lump sum

Reduction of
pension in
return for
benefits under
s. 2.

1. In return for the benefits conferred by the next following section, a pension for service in any of the capacities listed in the First Schedule to this Act shall be reduced by one quarter.

2.—(1) Where a person on retirement becomes eligible for a pension for service in any of the capacities listed in the First Schedule to this Act, he may be granted a lump sum equal to twice the annual amount of that pension.

PART I
—cont.

Lump sum on
retirement
or death.

(2) Where a person was serving in any of the said capacities at the time of his death and, if he had then retired on the ground of permanent infirmity, would have become eligible for a pension for that service, his legal personal representatives may be granted a lump sum equal to—

(a) twice the annual amount of the pension for which he would have been so eligible ; or

(b) his last annual salary,

whichever is the greater.

(3) Where a person on retirement becomes eligible for a pension for service in any of the said capacities but dies so soon after that the sums paid or payable to him on account of that pension plus an amount equal to twice the annual amount of that pension fall short of his last annual salary for such service, his legal personal representatives may be granted a lump sum equal to the deficiency.

(4) For the purposes of this section, the annual salary of a registrar of a county court who is also a district registrar of the High Court shall be deemed to include any salary payable in respect of his services as district registrar.

(5) No lump sum may be granted under this section in respect of the service of a person who died before the passing of this Act.

Widows' and Children's Pensions

3.—(1) Subject to the provisions of this Act, on the death after the passing of this Act of a male person (hereafter in this Act referred to as "the deceased") who—

Power to
grant widows'
and children's
pensions.

(a) had become eligible for a pension for service in one of the capacities listed in the First Schedule to this Act, or

(b) was serving in any of the said capacities at the time of his death and would, if he had then retired on the ground of permanent infirmity, have become eligible for a pension for that service,

there may be granted in respect of his service—

(i) where he leaves a widow, a pension to that widow (hereafter in this Act referred to as a "widow's pension"), and

(ii) where he had a wife at any time during his relevant service (whether or not the marriage continued until his

PART I
—cont.

death and whether or not a widow's pension is or can be granted), a pension for the benefit of the children of the marriage and of children adopted by him during the marriage (hereafter in this Act referred to as a "children's pension").

(2) Subject to the provisions of this Act, on the death after the passing of this Act of a female person (hereafter in this Act referred to as "the deceased") who—

(a) had become eligible for a pension for service in one of the capacities listed in the First Schedule to this Act, or

(b) was serving in any of the said capacities at the time of her death and would, if she had then retired on the ground of permanent infirmity, have become eligible for a pension for that service,

there may be granted in respect of her service a pension for the benefit of children of any marriage of hers and of children adopted by her (hereafter in this Act referred to as a "children's pension").

Widow's
pension.

4.—(1) No widow's pension may be granted if the marriage with the deceased took place after he retired from relevant service.

(2) The widow's pension shall determine on her death or re-marriage but may, if the Treasury specially direct, be paid in respect of any period after re-marriage when she has no husband.

(3) The annual amount of the widow's pension may be one-third of the annual amount of the personal pension.

Children's
pension:
beneficiaries.

5.—(1) A children's pension may be granted if, and be paid so long as and whenever, there are persons for whose benefit it can enure.

(2) Subject to the provisions of this section, the persons for whose benefit a children's pension can enure are any such children as are referred to in subsection (1) or subsection (2) of section three of this Act, as the case may be, who are for the time being in their period of childhood and full-time education.

(3) A children's pension cannot enure for the benefit of any person conceived or adopted by the deceased after the end of his relevant service.

(4) A children's pension cannot enure for the benefit of a female person who at the time of the death of the deceased was married and if, after the death of the deceased, a female person marries, she shall thereupon cease to be a person for whose benefit a children's pension can enure.

(5) A children's pension in respect of a woman's service cannot enure for the benefit of a child of any marriage of hers whose father is alive when the woman retires, or, as the case may be, dies while serving, unless the Treasury specially direct that it shall enure.

PART I
—cont.

6.—(1) A person shall be deemed for the purposes of the last preceding section to be in his period of childhood and full-time education while either—

Meaning of
"period of
childhood
and full-time
education".

- (a) he is under the age of sixteen ; or
- (b) he is receiving full-time instruction at any university, college, school or other educational establishment ; or
- (c) he is undergoing training by any person (hereinafter referred to as " the employer ") for any trade, profession or vocation in such circumstances that—
 - (i) he is required to devote the whole of his time to the training for a period of not less than two years ; and
 - (ii) while he is undergoing the training, the emoluments receivable by him, or payable by the employer in respect of him, do not exceed thirteen pounds a year, exclusive of any emoluments receivable or payable by way of return of any premium paid in respect of the training :

Provided that a person shall not be deemed for the purposes of this section to satisfy the conditions specified in paragraph (b) or the conditions specified in paragraph (c) of this subsection, unless there has up till then been no time since he attained the age of sixteen when he did not satisfy one or other of those conditions. Any period of whole-time service in the armed forces of the Crown under the National Service Acts, 1948 to 1950, shall be ignored for the purposes of this proviso.

(2) In the preceding subsection the expression " emoluments " means any salary, fees, wages, perquisites or profits or gains whatsoever, and includes the value of free board, lodging or clothing, and, for the purposes of sub-paragraph (ii) of paragraph (c) of the said subsection, where a premium has been paid in respect of the training of a person, all emoluments at any time receivable by him, or payable by the employer in respect of him, shall be deemed to be receivable or payable by way of return of the premium, unless and except to the extent that the amount thereof exceeds in the aggregate the amount of the premium.

(3) As respects any period during which neither of the conditions specified in paragraphs (b) and (c) of subsection (1) of this section is satisfied in relation to a person, the Treasury

PART I
—cont.

may, if they think fit, and are satisfied that that person's full-time education ought not to be regarded as completed, direct either—

- (a) that that period shall be ignored for the purposes of the proviso to subsection (1) of this section ; or
- (b) that that period shall be so ignored and shall also be treated as part of his period of childhood and full time education for all the other purposes of the last preceding section.

Children's
pension:
rate and mode
of payment.

7.—(1) Only one children's pension shall be granted in respect of the service of any one person, but—

- (a) the rate thereof may vary according to the number of persons for whose benefit it can for the time being enure, and
- (b) it shall be paid to such person or persons as the Treasury may from time to time direct, and different parts thereof may be directed to be paid to different persons, and
- (c) the person to whom all or any part thereof is paid shall apply the sum paid to him, without distinction, for the benefit of all the persons for whose benefit the pension can for the time being enure or for the benefit of such of them as the Treasury from time to time direct.

(2) Where the deceased leaves no widow and, if he leaves a widow, after her death, the annual amount of a children's pension—

- (a) while the persons for whose benefit it can enure are three or more in number, may amount to one-third of the annual amount of the personal pension ;
- (b) while the said persons are two in number, may amount to one-quarter of the annual amount of the personal pension ;
- (c) while there is only one such person, may amount to one-sixth of the annual amount of the personal pension.

(3) Subject to the provisions of the next succeeding subsection, where the deceased leaves a widow, the annual amount of a children's pension during her life—

- (a) while the persons for whose benefit it can enure are four or more in number, may amount to one-third of the annual amount of the personal pension ;
- (b) while the said persons are three in number, may amount to one-quarter of the annual amount of the personal pension ;

- (c) while the said persons are two in number, may amount to one-sixth of the annual amount of the personal pension ;
- (d) while there is only one such person, may amount to one-twelfth of the annual amount of the personal pension.

(4) Notwithstanding anything in the preceding provisions of this section, where the deceased leaves a widow who remarries, no children's pension shall be payable as respects any period when she has a husband unless the Treasury specially direct that such a pension shall be so payable, but, if the Treasury do specially so direct, they may, if they think fit, further direct that subsection (2) of this section shall apply as respects any such period notwithstanding that the widow is alive.

(5) Where the deceased was a woman, subsection (2) of this section shall apply as it applies where the deceased was a man leaving no widow and subsections (3) and (4) of this section shall not apply.

Contributions

8.—(1) A contribution towards the cost of the liabilities assumed under this Act for the benefit of a man's wife and children shall be made, taking the form of a reduction in the lump sum which may be granted under this Act in respect of that man's service. Contribution towards cost of widow's and children's pension.

(2) The amount of the contribution shall be equal to the annual amount of the personal pension :

Provided that where the man last had a wife at a time before the end of his relevant service (leaving out of account any marriage after the end of that service) the amount of the contribution shall be the annual amount of the personal pension—

- (a) multiplied by the number of years of his relevant service completed before that time ; and
- (b) divided by the number of years of his relevant service completed in all.

(3) No contribution shall be made in the case of a man who at no time during his relevant service had a wife.

(4) Where the personal pension is or would be payable to a woman—

- (a) the preceding subsections shall not apply, but
- (b) a contribution towards the cost of the liabilities assumed under this Act for the benefit of the woman's children shall be made, taking the form of a reduction in the lump sum which may be granted under this Act in respect of that woman's service ; and

PART I
—cont.

- (c) the amount of that contribution shall be ascertained from tables prepared for the purposes of this subsection by the Government Actuary:

Provided that if the woman has at any time during her relevant service so elected, no contribution shall be made and no children's pension shall be payable for the benefit of her children.

An election authorised to be made under this subsection shall be in writing, shall be made to the Treasury, and shall be made in the life-time of the person who makes it.

Special cases

Persons
serving
again after
retirement.

9.—(1) Where any person after retirement from service in one of the capacities listed in the First Schedule to this Act resumes his service, that retirement shall be left out of account for all the purposes of this Part of this Act except that—

(a) if a lump sum was granted on that retirement without any contribution being made, then unless that person on resumption of his service, or within three months of his marrying while again serving, refunds by way of contribution one half of the lump sum, no pension shall be granted to any widow or child of his; and

(b) any lump sum granted on that retirement, less any refund, shall be set off against any lump sum to be granted in respect of his service.

(2) Where the person resuming service after retirement is a woman, paragraph (a) of the foregoing subsection and the reference to a refund in paragraph (b) shall be omitted.

Persons
transferring
to approved
employment.

10.—(1) This section applies to a person who after the passing of this Act is with the consent of the head officer of his Department transferred from service in any of the capacities listed in the First Schedule to this Act to approved employment and who, if he had retired on the ground of permanent infirmity on the day before the day of the transfer, would have been eligible for a pension under Part III of the Third Schedule to the Supreme Court of Judicature (Consolidation) Act, 1925, under Part II of the First Schedule to the County Courts Act, 1934, or under the First Schedule to the County Courts Act, 1924.

(2) If a person to whom this section applies dies while in approved employment, subsections (3), (4), (5) and (6) of this section shall have effect.

(3) The like lump sum may be granted as might have been granted under this Act if the deceased had died on the day before the day of the transfer after deducting the total amount of the sums (if any) paid or payable in respect of his death under any system of superannuation applicable to the approved employment.

(4) The like contribution shall be made as would have been made if the deceased had died on the day before the day of the transfer, but not so as to exceed the amount actually payable under the last preceding subsection and, accordingly, if nothing is payable under that subsection, no contribution shall be made.

(5) If the deceased leaves a widow, and they did not marry on or after the day of the transfer, the like widow's pension commencing with the death may be granted as might have been granted if the deceased had died on the day before the day of the transfer.

(6) If the deceased leaves a child not conceived or adopted by the deceased on or after the day of the transfer, the like children's pension commencing on the death may be granted as might have been granted if the deceased had died on the day before the day of the transfer.

(7) If a person to whom this section applies dies after retiring from approved employment, no lump sum shall be paid under subsection (3) of section two of this Act to his legal personal representatives except to the extent, if any, to which the lump sum which might, apart from this subsection, be so paid exceeds the sums (if any) paid or payable to him, his legal personal representatives, and his widow or dependants under any system of superannuation applicable to the approved employment.

(8) Subsections (2) and (3) of section eight of the Superannuation Act, 1935 (which authorise the grant of a gratuity where a civil servant transferred to approved employment dies while in that employment or shortly afterwards) shall not apply to a person to whom this section applies.

(9) In this section the expression "approved employment" has the same meaning as in section four of the Superannuation Act, 1914.

(10) If a person to whom this section applies is a woman, subsection (5) shall not apply.

11.—(1) If a person serving at the date of the passing of this Act in any of the capacities listed in the First Schedule to this Act within three months after the passing of this Act so elects—

Persons
already
serving.

(a) any pension in relation to which that service was relevant service shall not be reduced under this Act, and

(b) eligibility for any pension in relation to which that service was relevant service shall not satisfy the conditions under which a lump sum or widow's or children's pension may be granted under this Act.

PART I
—cont.

(2) If such a person as aforesaid who has not made an election under the preceding subsection, within three months after the passing of this Act so elects—

(a) eligibility for any pension in relation to which the said service was relevant service shall not satisfy the conditions under which a widow's or children's pension may be granted under this Act, and

(b) any lump sum payable in respect of that service shall not be reduced under section eight of this Act.

(3) A man who after duly making an election under this section marries while still serving in any of the said capacities may within three months after the marriage by notice revoke his election.

(4) An election or notice authorised to be made under this section shall be in writing, shall be made to the Treasury, and shall be made in the life-time of the person who makes it.

**Persons
already retired.**

12.—(1) A pension for which a person had become eligible on retirement before the passing of this Act shall not be reduced under this Act and eligibility for that pension shall not satisfy the conditions under which a lump sum or widow's or children's pension may be granted under this Act:

Provided that if a person retiring on or after the tenth day of November, nineteen hundred and fifty, within three months after the passing of this Act so elects, this subsection shall not apply to or in relation to the pension for which he became eligible on that retirement.

(2) If a person exercising an election under the proviso to the preceding subsection within the said period of three months further elects—

(a) eligibility for the said pension shall not satisfy the conditions under which a widow's or children's pension may be granted under this Act; and

(b) any lump sum payable in respect of his service shall not be reduced under section eight of this Act.

(3) Where a person exercises his election under the proviso to subsection (1) of this section, the lump sum payable under this Act in respect of his service shall be diminished by any excess of the said pension paid or payable to him in respect of any period (whether before or after the passing of this Act) before the exercise of the election over the pension which would have been so paid or payable if the provisions of this Act for the reduction of personal pensions had applied during that period.

(4) An election authorised to be made under this section shall be in writing, shall be made to the Treasury, and shall be made in the life-time of the person who makes it.

13.—(1) Any reference in this Act to retirement shall in relation to a Lord Chancellor be taken as a reference to resignation of office and the Lord Chancellor serving at the date of the passing of this Act may not revoke an election under section eleven of this Act once he has resigned office.

PART I
—cont.

Lord
Chancellor
and members
of Lands
Tribunal.

(2) Section one of this Act shall not apply to a pension for service as member of the Lands Tribunal or of the Lands Tribunal for Scotland but the Lord Chancellor or Secretary of State in determining under subsection (6) of section two of the Lands Tribunal Act, 1949, what the pension is to be shall as far as possible take into account that the benefits conferred by section two of this Act should be offset by a reduction of one quarter in the pension and shall, accordingly, reconsider any determinations already made.

14.—(1) Any election or notice to be made by a stipendiary magistrate under section eight, section eleven or section twelve of this Act shall be made to the Secretary of State and not to the Treasury and, where the personal pension is a pension for service as a stipendiary magistrate, a reference to the Secretary of State shall be substituted in any other of the preceding sections of this Act for any reference to the Treasury.

Stipendiary
Magistrates.

(2) A determination under paragraph (b) of subsection (11) of section thirty-three of the Justices of the Peace Act, 1949 (which enables additional years of service to be taken into account for the purposes of a stipendiary magistrate's pension) may be made on the death of a stipendiary magistrate while serving as well as on his retirement.

(3) In this section the expression "stipendiary magistrate" does not include a metropolitan police magistrate.

Supplemental

15.—(1) The fact that this Act applies to a person shall not affect any rights of his under section two of the Superannuation Act, 1935 (which provides for the partial allocation of superannuation benefits to wives and dependants) and any calculations to be made under this Act shall be made as if any surrender under that section of a part of a pension had not been made.

Savings for
allocation of
pension and
for
reduction of
pension under
National
Insurance Act.

(2) In making any calculation under this Act any abatement of a pension falling to be made under regulations made under subsection (4) of section sixty-nine of the National Insurance Act, 1946 (which authorises the modification of any pensions scheme in connection with the passing of that Act) shall be left out of account.

16. Where a marriage which is voidable but not void from the beginning is declared to be null by any court of competent jurisdiction, the same results shall follow under this Act as

Effect under
this Act of
certain nullity
decrees.

PART I
—cont.

would have followed thereunder if the marriage had not been voidable and had been dissolved at the date of the declaration of nullity.

Recommendation of a Minister required in certain cases.

17. The grant under this Act of a lump sum or widow's or children's pension conditional on eligibility for a pension requiring the recommendation to the Treasury of the Lord Chancellor or of any other Minister shall require the like recommendation.

Contributions not to qualify for Income Tax relief.

18. Relief from income tax shall not be allowed to any person under section thirty-two of the Income Tax Act, 1918 (which provides relief for, amongst other things, contributions to secure deferred annuities to widows) or under any other provision of the Income Tax Acts providing for relief for income tax purposes, in respect of any contribution under sections eight or nine of this Act.

Consequential amendments for reduction of personal pension.

19. In consequence of the preceding provisions of this Act, the Acts set out in the first column of the Second Schedule to this Act shall have effect subject to the amendments set out in the second column of that Schedule:

Provided that those amendments, other than that of the Appellate Jurisdiction Act, 1876, shall not apply to any pension which by virtue of section eleven or section twelve of this Act is not to be reduced.

Benefits under this Act to be paid and borne by authorities paying and bearing personal pensions.

20. The Third Schedule to this Act shall have effect for assimilating the liability to pay, or bear the cost of, any derivative benefit with the liability to pay, or bear the cost of, the personal pension.

PART II**MISCELLANEOUS AND GENERAL**

President of the Transport Tribunal.

21.—(1) Where under subsection (2) of section three of the Chairmen of Traffic Commissioners, &c. (Tenure of Office) Act, 1937, a pension under Part III of the Third Schedule to the Supreme Court of Judicature (Consolidation) Act, 1925, is granted to the President of the Transport Tribunal and in computing that pension account is taken of any relevant service in any other office the pension shall, notwithstanding anything in subsection (2) of section three of the said Act of 1937, be defrayed only as to a proportion as part of the expenses of the Transport Tribunal and as to the balance out of moneys provided by Parliament.

The said proportion shall be determined by the Treasury, regard being had to the relative length of service and rate of remuneration in the relevant offices.

(2) For the purpose of computing any pension under Part III of the Supreme Court of Judicature (Consolidation) Act, 1925, account shall, notwithstanding anything in subsection (2) of

section one hundred and twenty-eight of that Act, be taken of any years of service as President of the Transport Tribunal.

PART II
—cont.

(3) Where subsection (2) of this section has effect, the pension shall be defrayed only as to a proportion out of moneys provided by Parliament and as to the balance as part of the expenses of the Transport Tribunal.

The said proportion shall be determined by the Treasury, regard being had to the relative length of service and rate of remuneration in the relevant offices.

(4) Where the grant of a lump sum or widow's or children's pension under Part I of this Act is conditional on eligibility for a pension to be defrayed in proportions determined under the foregoing provisions of this section, the lump sum or widow's or children's pension shall be defrayed in the like manner and the proportions shall be determined by the Treasury upon the same principles.

22.—(1) As respects any chairman or deputy chairman of the court of quarter sessions for the County of London except—

Chairmen
of London
Quarter
Sessions.

(a) one already retired when this Act is passed ; or

(b) if he so elects within three months after the date of the passing of this Act, one serving at that date,

this section shall apply and no pension shall be payable under section one of the Quarter Sessions (London) Act, 1896.

(2) Where a chairman or deputy chairman of the said sessions retires—

(a) after the end of the completed year of service in the course of which he attains the age of seventy-two years, or

(b) after fifteen years' service having attained the age of sixty-five years when he retires, or

(c) when disabled by permanent infirmity from performing the duties of his office,

the Secretary of State may assign him—

(i) a pension calculated in accordance with the Fourth Schedule to this Act ; and

(ii) a lump sum equal to twice the annual amount of that pension.

(3) Where a person after retirement from service as chairman or deputy chairman of the said sessions resumes service, the payment of any pension assigned to him under this section shall be suspended during the period of his resumed service but at the end of that period the pension shall again be payable and be recalculated in accordance with the Fourth Schedule to this Act.

(4) Where at the time of his death a person was serving as a chairman or deputy chairman of the said sessions, the Secretary

PART II
—cont.

of State may assign to his legal personal representatives a lump sum equal to—

(a) twice the annual amount of the pension for which he would have been eligible if he had then retired on the ground of permanent infirmity ; or

(b) his last annual salary,

whichever is the greater.

(5) Where a chairman or deputy chairman of the said sessions retires and dies so soon after that the sums paid or payable to him under subsection (2) of this section (leaving out of account any reduction under the next following subsection) fall short of his last annual salary, the Secretary of State may assign to his legal personal representatives a lump sum equal to the deficiency.

(6) Sections three to nine of this Act shall have effect as if—

(a) references to service in one of the capacities listed in the First Schedule to this Act included references to service as chairman or deputy chairman of the said sessions, and

(b) in relation to a pension for service as a chairman of the said sessions the expression “relevant service” meant service as a chairman or deputy chairman of the said sessions, and

(c) in relation to a pension for service as a deputy chairman of the said sessions the expression “relevant service” meant service as such a deputy chairman, and

(d) a reference to the Secretary of State were substituted for any reference to the Treasury, and

(e) the reference in section nine to Part I of this Act included a reference to the provisions of this section authorising payment of lump sums,

and, accordingly, any lump sum payable under this section shall, where necessary, be reduced under the provisions of section eight of this Act :

Provided that—

(a) a widows’ or children’s pension shall only be payable in pursuance of this subsection if and to the extent that the Secretary of State so directs ; and

(b) if a chairman or deputy chairman serving at the date of the passing of this Act within three months after that date so elects, this subsection shall not apply as respects him except so far as it relates to section nine of this Act.

(7) The London County Council shall be under a liability to pay any amount assigned by the Secretary of State under this section or directed by him to be paid under this section and any refund payable under section nine of this Act in pursuance of this section shall be paid to the London County Council.

PART II
—cont.

(8) A man who after duly making an election under this section marries while still serving as chairman or deputy chairman of the said sessions may within three months after the marriage by notice revoke his election and an election or notice authorised to be made under this section shall be in writing, shall be made to the Secretary of State and shall be made in the life-time of the person who makes it.

(9) In relation to a chairman of the said sessions any reference in subsection (2) of this section or the Fourth Schedule to this Act to service shall be construed as including a reference to service as deputy chairman of the said sessions.

23. The Superannuation Act, 1949, shall apply to any member of the Scottish Land Court to whom the Superannuation Acts, 1834 to 1935, apply by virtue of the Scottish Land Court Act, 1938, subject however to the modification that for any reference in the said Act of 1949 to the passing thereof there shall be substituted a reference to the passing of this Act.

Extension of Superannuation Act, 1949, to members of Scottish Land Court.

24.—(1) Where a salaried sheriff substitute who, after attaining the age of sixty-five years and completing a period of service of not less than fifteen years, has been appointed to the office of salaried sheriff substitute at another place, retires from that office and becomes entitled under section twenty of the Sheriff Courts (Scotland) Act, 1907, to an annuity, the average of his emoluments during the five years immediately preceding the appointment to the office from which he so retires, or during the five years immediately preceding his retirement, whichever is the greater, shall be deemed for the purposes of the said section twenty to constitute his salary.

Amendment of law relating to annuities to sheriffs substitute.

(2) Where a salaried sheriff substitute who has attained the age of sixty-five years and has completed a period of service of not less than fifteen years is appointed to the office of sheriff and is not restricted by the terms of his appointment to that office from engaging in private practice, section twenty of the Sheriff Courts (Scotland) Act, 1907, shall apply to him in like manner as it would have applied, if, at the date of his appointment to the office of sheriff, he had resigned his office of sheriff substitute and the certificate referred to in the said section twenty had been granted in respect of him:

Provided always that so long as such person holds the office of sheriff the said annuity shall not be payable.

25.—(1) There shall be paid out of the Consolidated Fund or the growing produce thereof—

Financial provisions.

- (a) any lump sum or widow's or children's pension if and so far as it is directed by this Act to be so paid; and
- (b) any increase attributable to this Part of this Act in the sums which under section twenty of the Sheriff Courts (Scotland) Act, 1907, are to be so paid.

PART II
—cont.

(2) There shall be paid out of moneys provided by Parliament—

- (a) any lump sum or widow's or children's pension if and so far as it is directed by this Act to be so paid,
- (b) such part of any pension for service as President of the Transport Tribunal as is directed by this Part of this Act to be so paid ;
- (c) any increase attributable to this Part of this Act in the sums which, under the Supreme Court of Judicature (Consolidation) Act, 1925, or the Superannuation Act, 1949, are payable out of moneys so provided ;
- (d) any increase attributable to this Act in the sums which under Part I or Part II of the Local Government Act, 1948, fall to be so paid ; and
- (e) any administrative expenses incurred by any Government Department attributable to the passing of this Act.

(3) There shall be paid into the Exchequer—

- (a) any refund of part of a lump sum, if and so far as it is directed by this Act to be so paid ;
- (b) any increase attributable to this Part of this Act in the sums which, under the Superannuation Act, 1949, fall to be so paid.

Interpretation.

26.—(1) In this Act—

- the expression “ derivative benefit ” means any lump sum under this Act or any widow's or children's pension ;
- the expression “ the personal pension ” in relation to any derivative benefit or contribution taking the form of a reduction in a derivative benefit, means the pension eligibility for which is a condition of the granting of the derivative benefit ;
- the expression “ relevant service ” in relation to a pension for service in one of the capacities listed in the first column of the First Schedule to this Act means service under one or more appointments in the capacities set out opposite in the second column of that Schedule, including service before the passing of this Act, and in relation to any derivative benefit or any contribution taking the form of a reduction in a derivative benefit the said expression has the same meaning as it has in relation to the personal pension.

(2) Any reference in this Act to a person's adopting a child shall be construed as a reference to his adopting a child (whether alone or jointly with any other person) in pursuance of an adoption order made under the Adoption Act, 1950, or any enactment repealed and re-enacted by that Act or any corresponding enactment of the Parliament of Northern Ireland or to his adopting a child (whether alone or jointly with any other person) in accordance with the law of the place where he was domiciled at the time of the adoption.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as amended by any other Act.

PART II
—cont.

27. This Act may be cited as the Administration of Justice Short title. (Pensions) Act, 1950.

SCHEDULES

FIRST SCHEDULE

LIST OF PERSONS AFFECTED BY PART I OF THIS ACT AND THEIR RELEVANT SERVICE

Sections 1, 2, 3,
9, 10, 11 and 26.

Relevant service

Lord Chancellor		Service as Lord Chancellor in the first or any subsequent term of office.
Lord of Appeal in Ordinary.		Service as a Lord of Appeal in Ordinary or as a judge of the Supreme Court, the Court of Session or the Supreme Court of Northern Ireland.
Judge of the Supreme Court.		Service as any judge of the Supreme Court.
Judge of the Court of Session.		Service as any judge of the Court of Session.
Judge of the Supreme Court of Northern Ireland.		Service as any judge of the Supreme Court of Northern Ireland.
Judge appointed for a district under the County Courts Act, 1934.		Service as a judge appointed for a district under the County Courts Act, 1934.
In Scotland, sheriff or salaried sheriff-substitute.		Pensionable service as sheriff or any service as sheriff-substitute.
Industrial Injuries Commissioner or deputy Industrial Injuries Commissioner where the person serving in that capacity is remunerated by a salary.		Service remunerated by a salary as Industrial Injuries Commissioner or as a deputy Industrial Injuries Commissioner or in any other capacity listed in this Schedule if service in that capacity counts for pension as service as such a Commissioner.
National Insurance Commissioner or deputy National Insurance Commissioner where the person serving in that capacity is remunerated by a salary.		Service remunerated by a salary as National Insurance Commissioner or deputy National Insurance Commissioner or in any other capacity listed in this Schedule if service in that capacity counts for pension as service as such a Commissioner.
Member of Lands Tribunal or Lands Tribunal for Scotland.		Service as member of either of these Tribunals.
Chairman of the Scottish Land Court.		Service as Chairman of the Scottish Land Court.

1ST SCH.
—cont.*Relevant service*

The following—

Permanent Secretary to
the Lord Chancellor
Master of the Supreme
Court (King's Bench
Division)Assistant Master of the
Supreme Court (King's
Bench Division)Master of the Supreme
Court (Chancery
Division)Master of the Supreme
Court (Taxing Office)

Master in Lunacy

Legal Visitor in Lunacy

Official Referee to the
Supreme CourtOfficial Solicitor to the
Supreme CourtRegistrar, High Court in
BankruptcyTaxing Master, High
Court in BankruptcyRegistrar, Probate
Division (not including
a district probate
registrar)

Clerk of Assize

President of the Trans-
port Tribunalwhere the person serving in
that capacity may become
eligible for a pension under
Part III of the Third
Schedule to the Supreme
Court of Judicature (Con-
solidation) Act, 1925.

Service in any of these capacities.

Registrar of the district
registry of the High Court
at Liverpool or Manchester.Service as registrar of the district
registry of the High Court at Liver-
pool or Manchester.Registrar appointed for a dis-
trict under the County
Courts Act, 1934, or in a
case where two registrars
are appointed, either of
those registrars, where the
person serving in that
capacity may become elig-
ible for a pension under
Part II of the First Schedule
to that Act.Service as a whole-time registrar
appointed for a district under the
County Courts Act, 1934.

*Relevant service*1ST SCH.
—cont.

Metropolitan police magistrate.	Service as a metropolitan police magistrate or as a stipendiary magistrate.
Stipendiary magistrate pensionable under section thirty-three of the Justices of the Peace Act, 1949.	Service as a stipendiary magistrate or as a metropolitan police magistrate.
Stipendiary magistrate pensionable under section four hundred and fifty-five of the Burgh Police (Scotland) Act, 1892.	Service as a stipendiary magistrate so pensionable.

SECOND SCHEDULE

Section 19.

CONSEQUENTIAL AMENDMENTS FOR REDUCTION OF
PERSONAL PENSION

<i>Act amended</i>	<i>Amendment</i>
The Judges' Pensions (Scotland) Act, 1808. (48 Geo. 3. c. 145.)	In section one for the words "three-fourth parts" substitute the words "nine-sixteenths".
The Lord Chancellor's Pension Act, 1832. (2 & 3 Will. 4. c. 111.)	In section three so far as it relates to a pension for service as Lord Chancellor for the words "five thousand pounds" in both places where those words occur substitute the words "three thousand, seven hundred and fifty pounds".
The Appellate Jurisdiction Act, 1876. (39 & 40 Vict. c. 59.)	In section seven for the words from "equal in amount" to the words "Supreme Court of Judicature Act, 1873" substitute the words "not exceeding two thousand, eight hundred and twelve pounds, ten shillings, or, where the pension is not to be reduced under the Administration of Justice (Pensions) Act, 1950, three thousand seven hundred and fifty pounds".
The Supreme Court of Judicature (Ireland) Act, 1877. (40 & 41 Vict. c. 57.)	In section nineteen for the words "two-thirds" substitute the words "one-half".
The Sheriff Courts (Scotland) Act, 1907. (7 Edw. 7. c. 51.)	In section twenty for the words "one-third", "two-thirds", "three-quarters" and "three-tenths" substitute respectively "one-quarter", "one-half", "nine-sixteenths" and "nine-fortieths".

2ND SCH.
—cont.

Act amended

Amendment

The Police Magistrates
(Superannuation) Act, 1915.
(5 & 6 Geo. 5. c. 74.)

In subsection (1) of section one, in paragraph (a) for the words "fifteen-sixtieths" substitute the words "fifteen-eightieths"; in paragraph (b) for the words "sixteen-sixtieths" substitute the words "sixteen-eightieths" and in the new paragraph (c) for the words "one-sixtieth" and "two-sixtieths" substitute respectively the words "one-eightieth" and "two-eightieths".

The County Courts Act, 1924.
(14 & 15 Geo. 5. c. 17.)

In the First Schedule, in paragraph 1 for the words "one-ninth" substitute the words "one-twelfth"; in paragraph 2 for the words "one-ninth" and "one thirty-sixth" substitute the words "one-twelfth" and "one forty-eighth"; and in paragraph 3 for the words "two-thirds" substitute the words "one-half".

The Supreme Court of Judica-
ture (Consolidation) Act,
1925.
(15 & 16 Geo. 5. c. 49.)

In section fourteen for the words "four thousand pounds" substitute the words "three thousand pounds", for the words "three thousand, seven hundred and fifty pounds" substitute the words "two thousand, eight hundred and twelve pounds, ten shillings", and for the words "three thousand, five hundred pounds" substitute the words "two thousand, six hundred and twenty-five pounds".

In Part III of the Third Schedule, in paragraph 1 for the words "ten-sixtieths" substitute the words "ten-eightieths"; in paragraph 2 for the words "ten-sixtieths" and "one-fortieth" substitute respectively the words "ten-eightieths" and "three one-hundred-and-sixtieths"; and in paragraph 3 for the words "two-thirds" substitute the words "one-half".

The Supreme Court of Judica-
ture of Northern Ireland
Act, 1926.
(16 & 17 Geo. 5. c. 44.)

In subsection (2) of section one for the words "two-thirds" substitute the words "one-half".

The Police Magistrates Super-
annuation (Amendment)
Act, 1929.
(19 & 20 Geo. 5. c. 37.)

In subsection (1) of section one for the words "one-sixtieth" and "two-sixtieths" substitute respectively the words "one-eightieth" and "two-eightieths".

*Act amended**Amendment*2ND SCH.
—cont.

The County Courts Act, 1934. (24 & 25 Geo. 5. c. 53.)	In the First Schedule, in Part I, in the second column of the Table for the words "thirtieths" substitute throughout the words "fortieths"; and in Part II, in paragraph 1 for the words "one-ninth" substitute the words "one-twelfth"; in paragraph 2 for the words "one-ninth" and "one thirty-sixth" substitute respectively the words "one-twelfth" and "one forty-eighth"; and in paragraph 3 for the words "two-thirds" substitute the words "one-half".
The National Insurance (Industrial Injuries) Act, 1946. (9 & 10 Geo. 6. c. 62.)	In the table in the Fifth Schedule for the words "thirtieths" substitute throughout the words "fortieths".
The National Insurance Act, 1946. (9 & 10 Geo. 6. c. 67.)	In the table in the Sixth Schedule for the words "thirtieths" substitute throughout the words "fortieths".
The Justices of the Peace Act, 1949. (12, 13 & 14 Geo. 6. c. 101.)	In section thirty-three, in subsection (4) for the words "fifteen-sixtieths" substitute the words "fifteen-eightieths", for the words "one-sixtieth" and "two-sixtieths" substitute respectively the words "one-eightieth" and "two-eightieths" and for the words "two-thirds" substitute the words "one-half".

THIRD SCHEDULE

Section 20.

FINANCIAL

1. Save as otherwise directed by this Schedule or by Part II of this Act, any derivative benefit shall be paid out of moneys provided by Parliament.

2. If the personal pension is or would be payable out of the Consolidated Fund, the derivative benefit shall be payable in the same manner.

3.—(1) If the personal pension is or would be paid and borne as directed by subsections (1) and (2) of section sixty of the National Insurance (Industrial Injuries) Act, 1946, or subsections (1) and (2) of section thirty-eight of the National Insurance Act, 1946, the derivative benefit shall be paid and borne in the same manner.

(2) If the personal pension is or would be paid and borne partly as aforesaid and partly in the manner in which some other pension would be paid and borne, the derivative benefit shall be paid or borne partly in the one manner and partly in the other in such proportions as may be determined by the Treasury having regard to the principles on which they would make an apportionment as respects the personal pension.

3RD SCH.
—cont.

4. If under subsection (2) of section three of the Chairmen of Traffic Commissioners, etc. (Tenure of Office) Act, 1937, the personal pension is or would be treated as part of the expenses of the Transport Tribunal, the derivative benefit shall, subject to Part II of this Act, be treated in the same manner.

5.—(1) This paragraph shall have effect where the personal pension is a pension payable under section thirty-three of the Justices of the Peace Act, 1949, to a stipendiary magistrate.

(2) Any derivative benefit shall only be paid if and to the extent that the Secretary of State so directs but, if and to the extent that the Secretary of State does so direct, the authority liable to pay the personal pension shall be under a liability to pay the derivative benefit.

(3) Where under subsection (6) of the said section thirty-three a contribution is or would be payable by one authority to another in respect of the personal pension, a contribution shall be payable by the one to the other in respect of the derivative benefit, the amount of which shall be arrived at on the same principles as the first-mentioned contribution.

(4) Any question as to the amount of any contribution in respect of a derivative benefit shall be determined by the Secretary of State.

(5) Subsection (12) of the said section thirty-three (which deals with cases where several authorities are jointly liable for the personal pension or for a contribution) shall with the necessary modifications apply in relation to the derivative benefit and to any contribution in respect of the derivative benefit.

6.—(1) Where the personal pension is or would be payable under the Police Magistrates (Superannuation) Acts, 1915 and 1929, and some authority is or would be under subsection (13) of section thirty-three of the Justices of the Peace Act, 1949, liable to pay a contribution in respect of it, that authority shall be liable to pay a contribution in respect of the derivative benefit.

(2) The amount of the contribution under this paragraph shall be arrived at on the same principles as the first-mentioned contribution.

(3) Any question as to the amount of any contribution under this paragraph shall be determined by the Secretary of State.

7. Where the personal pension is or would be payable under section four hundred and fifty-five of the Burgh Police (Scotland) Act, 1892, the derivative benefit shall only be paid if and to the extent that the Secretary of State so directs, but, if and to the extent that the Secretary of State does so direct, the authority liable to pay the personal pension shall be liable to pay the derivative benefit.

8.—(1) Any refund of the half of a lump sum under section nine of this Act shall subject to Part II of this Act be paid into the Exchequer:

Provided that if the lump sum was defrayed by an authority under sub-paragraph (2) of paragraph 5 or under paragraph 7 of this Schedule the refund shall be paid to that authority.

(2) Where such a refund is made as aforesaid, all such adjustments shall be made, including payments out of the Consolidated Fund or out of moneys provided by Parliament and payments into the Exchequer, as will secure that the position is the same as if the lump sum had been half what it was and no refund had been made.

3RD SCH.
—cont.

9. In this Schedule—

the expression “ the Consolidated Fund ” means the Consolidated Fund of the United Kingdom or the growing produce thereof;

any reference to a lump sum shall be construed as a reference to the net amount after any reduction under section eight of this Act has been made and references in the preceding paragraphs of this Schedule to contributions do not include references to the contribution referred to in the said section eight.

FOURTH SCHEDULE

Section 22.

SCALE OF PENSIONS OF CHAIRMEN OF LONDON QUARTER SESSIONS

When the number of completed years of service in the office of chairman or deputy chairman of the court of quarter sessions for the County of London is as specified in the first column of the following table, the pension shall not exceed the fraction of the last annual salary respectively specified in the second column of that table.

Years of service	Fraction of salary
Less than 5	Six-fortieths
5	Ten-fortieths
6	Eleven-fortieths
7	Twelve-fortieths
8	Thirteen-fortieths
9	Fourteen-fortieths
10	Fifteen-fortieths
11	Sixteen-fortieths
12	Seventeen-fortieths
13	Eighteen-fortieths
14	Nineteen-fortieths
15 or more	Twenty-fortieths

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Judges Pensions (Scotland) Act, 1808	48 Geo. 3. c. 145.
Lord Chancellor's Pensions Act, 1832	2 & 3 Will. 4. c. 111.
Supreme Court of Judicature Act, 1873	36 & 37 Vict. c. 66.
Appellate Jurisdiction Act, 1876	39 & 40 Vict. c. 59.
Supreme Court of Judicature (Ireland) Act, 1877 ...	40 & 41 Vict. c. 57.
Burgh Police (Scotland) Act, 1892	55 & 56 Vict. c. 55.
Quarter Sessions (London) Act, 1896	59 & 60 Vict. c. 55.
Sheriff Courts (Scotland) Act, 1907	7 Edw. 7. c. 51.
Superannuation Act, 1914	4 & 5 Geo. 5. c. 86.
Police Magistrates (Superannuation) Act, 1915 ...	5 & 6 Geo. 5. c. 74.
Income Tax Act, 1918	8 & 9 Geo. 5. c. 40.
County Courts Act, 1924	14 & 15 Geo. 5. c. 17.
Supreme Court of Judicature (Consolidation) Act, 1925	15 & 16 Geo. 5. c. 49.
Supreme Court of Judicature of Northern Ireland Act, 1926	16 & 17 Geo. 5. c. 44.
Police Magistrates Superannuation (Amendment) Act, 1929	19 & 20 Geo. 5. c. 37.
County Courts Act, 1934	24 & 25 Geo. 5. c. 53.
Superannuation Act, 1935	25 & 26 Geo. 5. c. 23.
Chairman of Traffic Commissioners, etc. (Tenure of Office) Act, 1937	1 Edw. 8 & 1 Geo. 6. c. 52.
Scottish Land Court Act, 1938	1 & 2 Geo. 6. c. 31.
National Insurance (Industrial Injuries) Act, 1946	9 & 10 Geo. 6. c. 62.
National Insurance Act, 1946	9 & 10 Geo. 6. c. 67.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
Lands Tribunal Act, 1949	12, 13 & 14 Geo. 6. c. 42.
Superannuation Act, 1949	12, 13 & 14 Geo. 6. c. 44.
Justices of the Peace Act, 1949	12, 13 & 14 Geo. 6. c. 101.
Adoption Act, 1950	14 Geo. 6. c. 26.

